

11. 9:00 AM CASE NUMBER: C25-01753

CASE NAME: HAROLD KUSHINS VS. JAY UTAL

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WALKER, KENNETH

TENTATIVE RULING:

Defendant Kenneth Walker's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure (CCP) § 430.41. The Court continues the demurrer hearing on its own motion to **9:00 a.m., Friday, March 20, 2026, in Department 32.**

The Court reminds the parties that pursuant to CCP § 430.41(a) they are required to discuss the alleged deficiencies with the complaint in person, by telephone or by video conference before each and every demurrer or motion to strike. As the court noted in *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3:

[T]rial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Defendant Kenneth Walker shall file a CCP § 430.41 meet and confer declaration by **Friday, March 6, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." (CCP § 430.41, subd. (a).)

12. 9:00 AM CASE NUMBER: MSC17-01486

CASE NAME: DOSKOCZ VS. ALS

***ENFORCEMENT OF JUDGMENT**

FILED BY:

TENTATIVE RULING:

The court orders all parties to appear at hearing.
Zoom appearance is acceptable and even preferred.

13. 9:00 AM CASE NUMBER: MSC19-01240

CASE NAME: SONNENSHEIN VS PACIFIC UNION

HEARING ON SUMMARY MOTION ADJUDICATION

FILED BY: SONNENSHEIN, STACEY

TENTATIVE RULING:

Before the Court is a motion by plaintiffs for summary adjudication against defendant Pacific Union International, Inc. on an issue of duty under Civil Code section 1088(b). For the reasons set forth, the motion is **denied without prejudice** as stated below.

Background

This action arises out of Plaintiffs' purchase of a residential property in Richmond (the "Property") through an escrow that closed on July 10, 2015. (Sec. Am. Compl. ("2AC") ¶¶ 7, 9, 13.) Defendant Pacific Union is a licensed real estate broker which represented both the seller and buyer in the purchase and sale transaction, through its agent, defendant Dan Joy. (2AC ¶¶ 2, 3, 7.)

In their 2AC, Plaintiffs allege causes of action for actual fraud/constructive fraud, negligence, and breach of fiduciary duty against Pacific Union and Joy. Plaintiffs move for summary adjudication against Pacific Union only pursuant to Code of Civil Procedure section 437c(f)(1) regarding an issue of duty.

Legal Standards for Motion for Summary Adjudication

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) On a motion for summary judgment, a plaintiff meets its burden of showing there is no defense to the claim if the plaintiff proves each element of the cause of action that would entitle plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).)

Plaintiffs here move for summary adjudication of an issue of duty. They do not move for summary adjudication of any cause of action.

Code of Civil Procedure § 437c(f) provides in pertinent part: "A party may move for summary adjudication as to . . . one or more issues of duty, if the party contends that . . . one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of . . . an issue of duty." (Code Civ. Proc. § 437c(f)(1) [emphasis added].) Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.] (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

In deciding a motion for summary adjudication, the Court views the evidence in the light most favorable to the opposing party, drawing "all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864 ("*Weiss*").) Declarations and other evidence offered in support of the motion are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) " '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180 [quoting *Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392].)

"All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1483.)

Analysis

Plaintiffs have set forth the issue of duty as to which they seek summary adjudication in their motion and their Separate Statement ("SS") of Undisputed Material Facts ("UMFs") as follows: "**There is no triable issue of fact that Civil Code § 1088(b) imposes a duty on real estate brokers to place in the multiple listing service only representations and statements which the broker knows or reasonably should know are true**" ("Issue of Duty"). (MSA p. 2, ll. 12-16; SS p. 2, ll. 1-4, Plaintiff's Notice of Motion and Motion for Summary Adjudication ("Notice of Motion & Motion," p.2: 14-16.)

A. Civil Code § 1088(b)

Plaintiffs have presented evidence of the text of Civil Code § 1088 as it existed in 2015 when the real estate transaction subject to the 2AC took place. (Steinfeld Decl. ¶ 5 and Exh. 1.) The statute provides in part: "If an agent . . . places a listing or other information in the multiple listing service, that agent . . . shall be responsible for the truth of all representations and statements made by the agent . . . of which that agent . . . had knowledge or reasonably should have had knowledge to anyone injured by their falseness or inaccuracy." (Steinfeld Decl. Exh. 1 [Civ. Code § 1088 eff. In 2015].) The text of the statute has been revised, and the foregoing provision now appears in Civil Code § 1088(b).

Plaintiffs have also provided the text of Civil Code section 1086 as it existed in 2015, a statute which defines an "agent" as "a licensed real estate broker under Chapter 3 (commencing with Section 10130) of Part 1 of Division 4 of the Business and Professions Code." (Steinfeld Decl. ¶ 6 and Exh. 2.) Civil Code § 1088 therefore applies to real estate brokers under the definition of "agent" in Civil Code § 1086.

B. Procedural Deficiencies in the Motion Regarding Scope of Summary Adjudication Based on the Issue of Duty Framed by Plaintiffs

The Issue of Duty as stated in Plaintiffs' motion and repeated in the SS is stated generically as to "real estate brokers" and without any reference to Pacific Union or to Plaintiffs. The Court acknowledges that the Plaintiffs state, "The motion is made **on the grounds that Defendant Pacific Union International, Inc.**, a licensed real estate broker who represented Plaintiffs in the purchase of the real property and whose acts and omissions in doing so form the gravamen of Plaintiffs' complaint, **had a duty** to Plaintiffs pursuant to Civil Code § 1088(b)." (MSA p. 2, ll. 8-11, Notice of Motion and Motion, p. 2: 8-11. Emphasis added.) However, Plaintiffs framed the issue for summary adjudication not as one specific to Defendant in this lawsuit, but as a generic statement of the law as it applies to real estate brokers, "There is no triable issue of fact that Civil Code § 1088(b) imposes a duty **on real estate brokers** to place in the multiple listing service only representations and statements which the broker knows or reasonably should know are true." The court can infer that Plaintiffs seek to apply the scope of the Issue of Duty thus framed to be summarily adjudicated to Pacific Union and Plaintiffs specifically, but that is not the Issue of Duty on which Plaintiffs have made the motion. (*Compare to Linden Partners v. Wilshire Linden Associates* (1998) 62 Cal.App.4th 508, 516-517.)

California Rule of Court, Rule 3.1350 addresses motions for summary judgment and summary adjudication. That Rule provides with respect to a motion for summary adjudication, "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of

undisputed material facts." (Cal. R. Ct., Rule 3.1350(b) [emphasis added].) The generic Issue of Duty set forth in the motion and the SS meets this requirement, but adding facts to the specific statement of the issue to be summarily adjudicated not included in the Issue of Duty Plaintiffs defined in the motion and SS does not meet the requirements of Rule 3.1350(b).

While an issue of duty, specifically "the existence or nonexistence of a duty" in the nature of a statutory, common law, or contractual duty may be the proper subject of a motion for summary adjudication (*Linden Partners, supra*, 62 Cal.App.4th at 517-519), the issue presented for adjudication must fully dispose of the issue to meet the requirements of Code of Civil Procedure § 437c(f)(1), and Plaintiffs' Issue of Duty as stated does not. Granting summary adjudication of the Issue of Duty as stated in Plaintiffs' motion and SS would not "completely dispose" of an issue of duty. At most, it would state the legal effect of Civil Code §§ 1088(b) and 1086(d) untethered to the parties in the case. (*Compare to Linden Partners, supra*, 62 Cal.App.4th at 516-517.) The Court cannot unilaterally and *sua sponte* rewrite the Issue of Duty Plaintiffs actually presented for summary adjudication in order to reach an issue which could potentially be summarily adjudicated, consistent with the *Linden Partners* decision.

C. Other Procedural Problems

The SS is supposed to include only the material facts the moving party contends are pertinent to the disposition of the issue presented in the motion. (Cal. R. Ct., Rule 3.1350(d), including (d)(1)(B) ["Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion."] and (d)(2) ["The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion."].) The Court concurs in some respects with Pacific Union that some of Plaintiffs' UMFs do not state material facts, but rather legal conclusions; the SS under Code of Civil Procedure § 437c and Rule 3.1350 is supposed to address facts, and the supporting memorandum contains the party's analysis of the relevant law and its application to the undisputed facts. (*See, e.g.*, UMF Nos. 3, 20, 21.)

The Court also agrees with Pacific Union that whether disputed or undisputed, many of the UMFs presented by Plaintiffs in their SS in support of the motion attempt to address issues beyond the narrow Issue of Duty stated on which Plaintiffs ask for summary adjudication. These issues include (a) any liability or responsibility by Pacific Union for sales agent Dan Joy's acts or omissions (for example, UMF Nos. 2-4), (b) whether the information presented in the listing or multiple listing service in this instance was accurate (for example, UMF Nos. 8, 11-15, 17-19), and (c) whether there was a breach of duty to Plaintiffs under Civil Code § 1088 as in effect in 2015 and Pacific Union's liability (for example, UMF Nos. 8-15). The Court cannot rule on a motion for summary adjudication except on the narrow grounds allowed under Code of Civil Procedure § 437c(f)(1).

The Court cannot partially summarily adjudicate the existence of a duty and breach of that duty, as such a ruling would not fully dispose of any cause of action. (*See Paramount Petroleum Corp., supra*, 227 Cal.App.4th at 239-244 [concluding summary adjudication of duty, breach of contractual obligation and liability was improper under Code of Civil Procedure § 437c(f)(1) where cause of action for breach of contract includes element of damages; court could not grant summary adjudication of liability issue only on breach of contract].) Though Plaintiffs may have intended to confine their

motion solely to the Issue of Duty, facts addressing conduct related to whether Pacific Union and/or Dan Joy met or breached the duty raise questions as to whether Plaintiffs are seeking a determination beyond the existence or nonexistence of a duty owed by Pacific Union to them under Civil Code § 1088(b).

Denial Without Prejudice

The Court denies the motion based on the procedural deficiencies set forth. The Court in its discretion denies the motion without prejudice, such that if Plaintiffs desire, they can refile the motion to correct the procedural issues as the Court does not reach the merits of any issue of duty by this ruling.

Evidentiary Issues and Evidentiary Objections

Given the Court's ruling on the motion, the Court does not address the parties' requests for judicial notice as not material to the ruling. Under Code of Civil Procedure § 437c(q), the Court only needs to rule on evidentiary objections material to the Court's ruling. Given the Court's ruling, the Court does not rule on the evidentiary objections to defendant's evidence. Counsel for Pacific Union is also advised that, although Pacific Union's response to UMF Nos. 14 and 15 refer the Court to "Evidentiary Objections to Declaration of Adam Bailey," the Court's Odyssey system does not include any such objections, nor did Pacific Union's proof of service of its opposition papers filed on January 27, 2026 list any such evidentiary objections.

14. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
***HEARING ON MOTION IN RE: ATTORNEY'S FEES**
FILED BY: HERITAGE BANK OF COMMERCE
TENTATIVE RULING

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to August 21, 2026 at 9:00 a.m. in Department 32.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO INTERROGATORIES**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

Plaintiff Frank Gallagher (Plaintiff or Gallagher) brings the instant motion to compel further responses to Form Interrogatories and further responses to a Request for Production of Documents from